

Software Ownership Acknowledgment and Limited Use License Agreement

This Software Ownership Acknowledgment and Limited Use License Agreement (the "Agreement") is entered into as of **[Effective Date]** by and between **Sam Hay** ("Owner") and **[Organization Legal Name]**, a **[State and Entity Type]** ("Organization").

1. Software

"Software" means the Lab Collection Calculator and its related source code, user interface, workflow logic, documentation, test-record structure, updates, and original materials provided or hosted by Owner. Third-party data, trademarks, and materials are excluded from Owner's claimed ownership and remain subject to their respective owners' rights.

2. Ownership acknowledgment

Organization acknowledges and agrees that:

1. Owner independently developed and maintains the Software as a personal software project.
2. The Software was not specially commissioned or assigned to Owner by Organization.
3. The Software and all original intellectual-property rights in it remain solely owned by Owner.
4. The Software is not a work made for hire for Organization.
5. Organization's access, testing, use, feedback, suggested changes, or operational adoption does not transfer ownership or create any joint ownership.
6. No source-code ownership, copyright, patent, trade-secret, or other proprietary right is assigned to Organization under this Agreement.

3. Limited license

Subject to this Agreement, Owner grants Organization a limited, nonexclusive, nontransferable, nonsublicensable, revocable license to permit its authorized personnel to access and use the hosted Software solely for Organization's internal laboratory collection and specimen-processing workflow.

The license does not permit Organization to sell, license, distribute, publicly display, commercially exploit, or provide the Software to another organization or third party.

4. Restrictions

Organization shall not, and shall not permit another person to:

1. Copy, download, reproduce, modify, translate, adapt, or create derivative works from the source code, except with Owner's prior written consent.
2. Remove or obscure copyright, ownership, attribution, or disclaimer notices.
3. Claim ownership of the Software or register any right in the Software.
4. Transfer, sublicense, share, mirror, or separately host the Software.
5. Reverse engineer or attempt to obtain nonpublic source code or credentials.
6. Use the Software to store patient names, medical record numbers, protected health information, or other patient identifiers.
7. Use third-party names, trademarks, or materials in a way that implies sponsorship, endorsement, or affiliation.

5. Hosting and access

The hosted Software is maintained through an account controlled by Owner. Organization receives access to the hosted service, not possession or ownership of the hosting account, repository, or source code.

Owner may modify, suspend, or withdraw hosted access at any time and for any reason, with or without prior notice. Organization is responsible for maintaining an alternative workflow and business-continuity process.

6. Clinical and operational responsibility

The Software is a workflow aid and is not a laboratory information system, medical device, diagnostic system, or substitute for current official instructions. Organization is solely responsible for:

1. Validating the Software before use and after material updates.
2. Verifying collection, handling, volume, stability, temperature, rejection, and service-area requirements against the current official test directory.
3. Establishing and approving policies, training, competency, quality assurance, and regulatory controls.
4. Exercising independent professional and clinical judgment.
5. Reviewing manually added or edited records before operational use.
6. Ensuring compliance with applicable privacy, laboratory, employment, and healthcare laws.

7. Third-party materials

Third-party laboratory names, trademarks, test information, and materials remain the property of their respective owners. This Agreement does not grant Organization rights in third-party materials. Neither Owner nor the Software represents sponsorship by, endorsement by, or affiliation with any reference laboratory or directory provider. Organization shall comply with applicable third-party terms and independently determine whether its intended use requires additional permission.

8. Feedback

Organization may provide suggestions or feedback. Owner may use feedback without restriction or payment, but feedback does not give Organization any ownership interest in the Software or in improvements made by Owner. Organization shall not provide confidential information in feedback unless the parties first agree in writing.

9. Updates and support

Owner may provide updates or support at Owner's discretion unless the parties sign a separate support agreement. Owner is not obligated to maintain particular features, test records, availability levels, or compatibility.

10. Disclaimer of warranties

TO THE MAXIMUM EXTENT PERMITTED BY LAW, THE SOFTWARE IS PROVIDED "AS IS" AND "AS AVAILABLE." OWNER DISCLAIMS ALL EXPRESS AND IMPLIED WARRANTIES, INCLUDING WARRANTIES OF ACCURACY, COMPLETENESS, NON-INFRINGEMENT, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND UNINTERRUPTED OR ERROR-FREE OPERATION.

11. Limitation of liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, OWNER SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES, OR FOR LOST PROFITS, LOST DATA, BUSINESS INTERRUPTION, SPECIMEN REJECTION, DELAYED TESTING, OR CLINICAL OR OPERATIONAL DECISIONS ARISING FROM USE OF OR INABILITY TO USE THE SOFTWARE.

OWNER'S TOTAL LIABILITY ARISING OUT OF THIS AGREEMENT SHALL NOT EXCEED THE GREATER OF **\$100** OR THE TOTAL LICENSE FEES PAID TO OWNER UNDER THIS AGREEMENT DURING THE TWELVE MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM.

12. Indemnification

To the extent permitted by law, Organization shall defend, indemnify, and hold Owner harmless from third-party claims, losses, penalties, costs, and reasonable attorneys' fees arising from Organization's use or misuse of the Software,

failure to verify test requirements, violation of privacy or laboratory rules, inclusion of patient information, or breach of this Agreement, except to the extent caused by Owner's willful misconduct.

13. Term and termination

This Agreement begins on the Effective Date and continues until terminated. Either party may terminate it upon **[10] days' written notice**. Owner may terminate immediately for material breach, unauthorized copying or distribution, misuse, nonpayment, or a material legal, security, or patient-safety concern.

Upon termination, Organization shall stop using the Software and destroy unauthorized copies in its possession or control. Sections concerning ownership, restrictions, disclaimers, limitation of liability, indemnification, and general terms survive termination.

14. Confidentiality and security

Organization shall protect any nonpublic source code, credentials, technical information, or documentation received from Owner and shall use reasonable safeguards to prevent unauthorized access. Organization shall promptly notify Owner of suspected unauthorized access, copying, or disclosure.

15. No employment or agency relationship

This Agreement does not create employment, partnership, joint venture, fiduciary, or agency relationships. Neither party may bind the other.

16. General terms

1. **Governing law.** California law governs this Agreement, without regard to conflict-of-law principles. The state and federal courts located in Los Angeles County, California shall have exclusive jurisdiction, unless the parties agree otherwise in writing.
2. **Assignment.** Organization may not assign this Agreement without Owner's prior written consent.
3. **Entire agreement.** This Agreement is the complete agreement concerning the Software and supersedes prior discussions on the same subject.
4. **Amendments.** Amendments must be in writing and signed by both parties.
5. **Severability.** If a provision is unenforceable, it shall be limited to the minimum extent necessary, and the remaining provisions remain effective.
6. **Waiver.** A waiver is effective only in writing and does not waive a later breach.
7. **Electronic signatures.** Electronic signatures and counterparts are effective as originals.

Signatures

OWNER

Sam Hay

Signature: _____

Date: _____

ORGANIZATION

[Organization Legal Name]

By: _____

Name: _____

Title: _____

Date: _____